

	2025-01523991	Before the court is a motion to set an order to show cause hearing regarding contempt against Michelle Fonseca-Kamama, Esq., and Michael Caspino, Esq., filed by plaintiff Esra Naama (Plaintiff). As more fully set forth below, the motion is DENIED. Plaintiff requests the court set an order to show cause as counsel's alleged failure or refusal to comply with a writ of execution and turn over certain funds in counsel's trust account which may otherwise be used to satisfy a sister state judgment issued in Plaintiff's favor. Although the court may issue such an order, the court declines to do so in this instance. Counsel has produced evidence showing the Wyoming judgment on which the sister state judgment and writ of execution are based has been vacated by the Wyoming court that issued it. (Caspino Decl. ¶¶ 8-10, Exh. A; Fonseca-Kamama Decl. ¶¶ 9-10, Exh. A.) Plaintiff did not file any reply to respond to these representations. As it appears the judgment and writ of execution on which this motion is based are no longer enforceable based on the underlying Wyoming judgment being vacated, the court DENIES this motion. Based on the Wyoming judgment being set aside, the court sets an OSC as to why the sister state judgment in this case should not be vacated and these proceedings dismissed without prejudice to future proceedings depending on the outcome of the Wyoming case. The OSC is set for MONDAY, AUGUST 10, 2026, AT 9:30 A.M., IN DEPARTMENT C23. The clerk is directed to give notice of this ruling.
12.	<i>City of Orange vs. Leon</i> 2008-00114884	<u>Please see the above notice regarding oral argument on June 25, 2026</u> Before the court is the continued hearing on the motion of Kenneth Jacobsen, as trustee of So Cal Family Irrevocable Investment Trust (Jacobsen), for leave to file a complaint in intervention and to vacate or clarify the injunctive order executed on January 27, 2010. As more fully set forth below, the motion is DENIED. By this motion, Jacobsen seeks to intervene in the case as a matter of right pursuant to Code of Civil Procedure section 387, subdivision (d)(1). Jacobsen seeks to intervene to challenge the stipulated permanent injunction and judgment entered in this action on or about January 10, 2027. Among other things, the injunction prohibits certain uses of the property located at 7418 E. Grovewood Lane in the City of Orange, including

		advertising, promoting, soliciting, planning, accepting any compensation or engaging in any acts in furtherance of using the property for commercial parties, commercial events or commercial rentals of less than 30 days. Jacobsen asserts he is entitled to intervene in this action as the current owner of the property and he asserts the stipulated injunction is invalid because the parties who stipulated to the injunction, Burke Leon and Andrew Leon, were not the owners of the property at that time. Whether intervention is of right or permissive, the party seeking to intervene must make a timely application seeking leave to intervene. (Code Civ. Proc., § 387, subd. (d); <i>Lofton v. Wells Fargo Home Mortgage</i> (2018) 27 Cal.App.5th 1001, 1012 (<i>Lofton</i>).) “Timeliness is measured from ‘the date the proposed interveners knew or should have known their interests in the litigation were not being adequately represented.’ [Citation.]” (<i>Lofton</i>, at p. 1013.) “‘Timeliness is determined by the totality of the circumstances facing would-be intervenors, with a focus on three primary factors: “(1) the stage of the proceeding at which an applicant seeks to intervene; (2) the prejudice to other parties; and (3) the reason for the delay.”’ [Citation.]” “[D]elay in itself does not make a request for intervention untimely.” [Citation.] When mandatory intervention ‘is sought, because “the would-be intervenor may be seriously harmed if intervention is denied, courts should be reluctant to dismiss such a request for intervention as untimely, even though they might deny the request if the intervention were merely permissive.”’ [Citation.]” (<i>Crestwood Behavioral Health Inc. v. Lacy</i> (2021) 70 Cal.App.5th 560, 574.) Here, the court’s file reveals plaintiff City of Orange (City) filed this action against Burke Leon and Andrew Leon in November 2008, to enjoin a public nuisance. In October 2009, the parties reached a settlement at a mandatory settlement conference. That settlement resulted in the stipulated judgment and permanent injunction Jacobsen seeks to challenge. As noted, the judgment was entered on January 10, 2010. Jacobsen asserts he acquired the property subject to the injunction on September 27, 2023—i.e., nearly 14 years after the judgment was entered. Jacobsen filed this motion on February 9, 2026, and this court first heard the motion on April 30, 2026. At that time the court continued the hearing to the present date because Jacobsen failed to provide copies of any of the title documents he referred to in his motion as establishing his
--	--	--

	right to and the basis to intervene. The court also noted the motion raised a number of issues including, the timeliness of the motion, whether the injunction was recorded against the property so as to provide constructive notice, how and when Jacobsen learned about the injunction, did he purchase the property subject to the injunction, what are the governing standards for intervening 16 years after the judgment was entered, can Jacobson intervene when he had no interest in the property at the time the judgment was entered, and is a collateral attack the appropriate means to assert Jacobsen's challenges. The court continued the hearing to today's date to allow Jacobsen to address these and other issues. (See April 9, 2026 Minute Order.) Jacobsen has provided copies of many of the title documents relating to the property, but he largely has left unaddressed many of the questions the court raised relating to the timeliness and appropriateness of intervention at this point. In terms of his knowledge of the injunction, Jacobson's supplemental declaration states, in considered using the property as an AirBnB in 2025 he discovered through his counsel the injunction/judgment at issue. He does not provide any more specifics about his discovery of the injunction/judgment, but does state he and his counsel met with the City of Orange on June 23, 2025, to discuss the issue. Jacobsen has failed to show his intervention is timely or appropriate. Again, he seeks to challenge a 16-year-old judgment. This case has long been over. He fails to answer the court's questions regarding whether there was constructive notice of the injunction/judgment through any recording. Rather, he merely vaguely says he learned of the injunction/judgment through counsel nearly two years after he acquired the property. No more specifics are provided. Jacobsen provides no authority to support his intervention other than his citation to section 387. Again, we have a 16-year-old judgment that was entered years before Jacobsen acquired any interest in the property and no justification for this timing is provided. Moreover, Jacobsen seeks to intervene to file a complaint in intervention asserting claims for (1) quiet title, (2) declaratory relief, (3) revocation of order, and (4) injunctive relief. Filing a complaint in intervention would actually align Jacobsen with the City, who is the actual plaintiff in this case. What Jacobsen is actually seeking to do is to assert new affirmative claims challenging the judgment in this case, which has been
--	--

		resolved for a considerable period of time. He is not seeking to defend against the nuisance claims the City alleged in its complaint. Rather, he is seeking to challenge the authority of the original defendants to stipulate to the judgment and bind future owners of the property. What Jacobsen has identified is a new and separate dispute between he and the City as to the enforceability of the injunction/judgment. He is not seeking to litigate the nuisance claims asserted in this case, which the parties long ago resolved through their settlement. Rather, he is seeking to challenge the binding nature of the agreement between the City and the original defendants. This is a collateral attack on that judgment and agreement that is more appropriately asserted in a new case between the City and Jacobsen that is focused on the new issues and claims Jacobsen seeks to assert. He has failed to show his right to intervene or the appropriateness of reopening this case to resolve separate issues. Based on the foregoing, the motion is DENIED. The clerk is directed to give notice of this ruling.
13.		
14.		
15.		
16.		
17.		
18.		
19.		
20.		